

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,

DOCKET NO. 25-14

Complainant,

v.

OAK WAY CARGO, LLC,

Respondent,

**RESPONDENT OAK WAY CARGO, LLC’S OPPOSITION TO COMPLAINANT
WAY2GO CARGO, CORP.’S AMENDED MOTION TO ISSUE SUBPOENAS TO NON-
PARTIES**

Respondent, Oak Way Cargo, LLC (“Oak Way”), by and through the undersigned counsel, files its Opposition to Complainant, Way2Go Cargo, Corp.’s (“Way2Go” or “Complainant”) Amended Motion to Issue Subpoenas to Non-Parties, dated January 5, 2026, and in support thereof, states as follows:

1. The Commission should deny Complainant’s Amended Motion to Issue Subpoenas to Non-Parties. The requested subpoenas are not a good-faith effort to obtain relevant evidence in this expedited administrative proceeding. Instead, they are a continuation of the same harassing discovery tactics that Complainant previously attempted—and failed—in federal district court.

2. Complainant elected to initiate a parallel district court action in the United States District Court for the Southern District of Florida pursuant to 46 U.S.C. § 41306(a), styled *Way2Go Cargo Corp. v. Oak Way Cargo, LLC*, Case No. 25-cv-23445-Williams/Lett (the “District Court Action”). In the District Court Action, Complainant sought a preliminary injunction based on the same factual allegations and legal theory asserted here. The district court conducted a four-day evidentiary hearing on Complainant’s motion for preliminary injunction, during which



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Complainant appeared with no evidence beyond what was already attached to its verified complaint. Critically, many of Complainant's sworn allegations were shown to be demonstrably false at the hearing. Complainant's motion for preliminary injunction in the District Court Action remains pending.

3. After failing to carry its burden at the injunction hearing, Complainant attempted to issue sweeping subpoenas on Oak Way's customers, business partners, and government agencies in the District Court Action. Oak Way opposed those subpoenas. The full briefing is attached hereto as **Exhibits 1, 2, 3, 4 and 5**.

4. The district court ultimately quashed the subpoenas and entered a protective order, expressly noting that "despite having four days to present its evidence during the October 2025 evidentiary hearing, [Way2Go] now seeks to issue subpoenas to numerous non-party customers of [Oak Way] to find additional evidence. The undersigned finds there is little benefit to having these non-parties bear the burden and evidence of producing evidence at this stage of the litigation." A copy of the district court's order is attached as **Exhibit 6**.

5. Complainant now seeks to accomplish through this Commission what it was prohibited from doing in federal court. That effort should be rejected. This is an expedited administrative proceeding, governed by regulations ensuring an initial decision within one year of Oak Way's Answer. Complainant was required to come to this forum with its evidence prepared—not to embark on a fishing expedition against non-parties.

6. The subpoenas at issue are intended to harass Oak Way, disrupt its commercial relationships, and manufacture evidence. Allowing such discovery would undermine the expedited nature of this proceeding and the district court's prior ruling. For these reasons, the Commission should deny Complainant's Amended Motion to Issue Subpoenas to Non-Parties.



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WHEREFORE, Respondent, Oak Way Cargo, LLC, respectfully requests that the Commission enter an Order denying Complainant, Way2Go Cargo, Corp.'s Amended Motion to Issue Subpoenas to Non-Parties, and for such other and further relief as the Commission deems just and proper.

Dated: January 6, 2026.

Respectfully submitted,

BARAKAT + BOSSA, PLLC

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via e-mail upon the Office of the Secretary at secretary@fmc.gov and served upon all counsel of record for Respondent, Way2Go Cargo, Corp, Sarah Denis, Esq. at sarah@epgdlaw.com and Jennifer S. Roldan, Esq., at jennifer@epgdlaw.com on this 6th day of January, 2026.

By: /s/ Schneur Zalman Kass

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